



CHAPTER xxi.

An Act to confirm a Provisional Order under the
Private Legislation Procedure (Scotland) Act
1899 relating to Aberdeen Corporation. A.D. 1928.
—
[2nd July 1928.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by
one of His Majesty's Principal Secretaries of State under
the provisions of the Private Legislation Procedure
(Scotland) Act 1899 as read with the Secretaries of
State Act 1926 and it is requisite that the said Order
should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows:—

1. The Provisional Order contained in the schedule
hereunto annexed shall be and the same is hereby
confirmed. Confirmation of
Order in
schedule.

2. This Act may be cited as the Aberdeen Corporation
Order Confirmation Act 1928. Short title.

A.D. 1928.

SCHEDULE.

ABERDEEN CORPORATION.

Provisional Order to redivide the city of Aberdeen into new wards to vary the number of town councillors and parish councillors and for other purposes.

WHEREAS the city and royal burgh of Aberdeen (hereinafter referred to as "the city") was divided by the Aberdeen Corporation Act 1891 for the purpose of electing town councillors into eleven existing wards as defined in the Second Schedule to the said Act (hereinafter referred to as "the existing wards"):

And whereas in pursuance of the said Act as amended by the Aberdeen Corporation Act 1899 each of the existing wards is represented in the town council of the city by three town councillors elected by the electors and the town council consists of thirty-three elected town councillors and the dean of guild for the time being:

And whereas as between the existing wards of the city a difference in the proportion of the number of electors to elected town councillors has been caused by a change in the distribution of the population of the city and the increase of population in certain of the existing wards:

And whereas a scheme has been prepared for the redivision of the city into the twelve new wards described in this Order and it is expedient that the said new wards should be substituted for the existing wards and that the number of elected town councillors should be increased to thirty-six:

And whereas the city parish of Aberdeen is co-extensive with the city and is administered by the parish council of the city parish of Aberdeen:

And whereas it is expedient that the new wards of the city should be the parish wards for the purposes of parish council elections and administration and that the number of members to be elected to represent the said wards on the parish council should be as in this Order provided:

And whereas the said parish council have provided and maintain hospitals at Oldmill for poor law purposes : A.D. 1928.

And whereas the lord provost magistrates and town council of the city (hereinafter referred to as "the Corporation") acting as the local authority under the Public Health (Scotland) Act 1897 have provided hospital accommodation for the treatment of infectious diseases at Oldmill :

And whereas it is expedient that the Corporation should be authorised to take over the hospitals at Oldmill and to provide and manage hospital accommodation on behalf of the said parish council and that the agreement for that purpose between the Corporation and the said parish council as set forth in the Second Schedule to this Order should be confirmed :

And whereas by the Great North of Scotland Railway Act 1898 the London and North Eastern Railway Company were authorised to alter and extend the bridge carrying the street known as Castle Terrace over the said company's railway at their Waterloo Station :

And whereas by the Aberdeen Corporation Order 1915 further provision was made with respect to the construction of the said bridge and with respect to a contribution by the Corporation to the cost thereof :

And whereas an agreement was made between the said company and the Corporation of date the sixteenth and twenty-fourth days of March one thousand nine hundred and twenty-six with respect to the construction of the said bridge :

And whereas the said company and the Corporation have entered into a further agreement with respect to the said bridge in substitution for the said agreement of March one thousand nine hundred and twenty-six and for certain of the aforesaid provisions of the said Act of 1898 and the said Order of 1915 and it is expedient that the said further agreement as set forth in the Third Schedule to this Order should be confirmed :

And whereas for the purposes of the Births Deaths and Marriages (Scotland) Acts 1854 to 1910 the city parish of Aberdeen is divided into six registration districts each such district having a separate registration office :

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— And whereas it is expedient to make further provision with respect to the situation of the known place of business or office of any registrar or assistant registrar in the city :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

Short title
citation
and com-
mencement.

1.—(1) This Order may be cited as the Aberdeen Corporation Order 1928 and this Order and the Aberdeen City Acts 1862 to 1925 may be cited as the Aberdeen City Acts 1862 to 1928.

(2) This Order shall come into operation at the date of the passing of the Act confirming this Order which date is hereinafter referred to as “ the commencement of this Order.”

Interpreta-
tion.

2. In this Order the following expressions shall have the meanings assigned to them in this section (that is to say) :—

“ The city ” means the city and royal burgh of Aberdeen ;

“ The Corporation ” means the lord provost magistrates and town council of the city ;

“ The town council ” means the town council of the city ;

“ The town clerk ” means the town clerk of the city ;

“ The new wards ” means the wards of the city described in the First Schedule to this Order.

New
division of
city into
wards.

3.—(1) The existing wards into which the city is divided are hereby abolished and the city shall for the purpose of electing town councillors be and is hereby divided into twelve new wards bounded as defined and designated by numbers and names in the First Schedule to this Order and each of such twelve wards shall at and after the first municipal election under this Order be represented in the town council by three town councillors.

(2) The description of the boundaries of the new wards shall be subject to the rules of construction defined by section 5 of the Representation of the People (Scotland) Act 1832. A.D. 1928.

4. The map signed in duplicate by the Secretary of State with reference to this Order showing the boundaries of the new wards shall be deposited at the office of the town clerk and shall be kept by him and one of the said maps shall be open to inspection by any elector or ratepayer at all reasonable hours. Deposit of map showing ward boundaries.

If there be any discrepancy between the said map and the descriptions in the First Schedule to this Order the said map shall be deemed to be correct and shall prevail.

5. The town council shall consist of thirty-six town councillors (to be elected as hereinafter mentioned) and the dean of guild of the city for the time being and the number of such town councillors to be elected magistrates shall be seven of whom one shall be the lord provost and six shall be baillies and the majority of the town council shall constitute a quorum. Number of town council and magistrates.

6.—(1) For the purpose of the first election of town councillors for the new wards the whole number of the town councillors elected by the electors of the existing wards including the lord provost and the treasurer of the city shall retire from office and the electors of the city shall on the first Tuesday of November in the year one thousand nine hundred and twenty-eight proceed in accordance with the provisions of the Town Councils (Scotland) Act 1900 and relative Statutes to elect the whole number of thirty-six town councillors by this Order appointed to be elected. The electors in each new ward shall elect three town councillors for each such ward. Retirement and first election of town councillors.

(2) The town clerk or some person appointed by him shall be the returning officer for the purposes of the said first election.

7.—(1) At the first meeting of the town council to be held after the said first election the first business to be transacted shall be the election of a lord provost. First meeting of town council.

(2) The notice calling the said first meeting shall be given by the town clerk.

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A.D. 1928. (3) The town clerk shall preside at the said first meeting of the town council during the proceedings for the first election of a lord provost.

(4) The town clerk shall vacate the chair after the election of the lord provost and the lord provost shall preside during the remainder of the said first meeting.

(5) The next business to be transacted at the said first meeting shall be the election of baillies and the appointment of a treasurer.

Existing magistrates to continue till successors elected. 8. The lord provost magistrates treasurer and office bearers in office immediately preceding the said first election shall continue in office and shall retain their several offices and shall subject to this Order exercise the respective powers and duties thereof until their successors are elected and inducted into office whereupon they shall go out of office and their whole powers and duties shall cease and determine.

Retirement and future election of town councillors. 9. The electors of each new ward shall at the subsequent annual election of town councillors in each succeeding year after the first election choose one town councillor in room of the town councillor who shall have retired as having been longest in office. Provided always that at the election in the year one thousand nine hundred and twenty-nine the town councillor in each ward then to retire shall be the town councillor except the lord provost and the treasurer of the city who had the smallest number of votes at the election in the year one thousand nine hundred and twenty-eight and that at the election in the year one thousand nine hundred and thirty the town councillor in each ward then to retire shall be the town councillor except the lord provost and the treasurer of the city who had the next smallest number of votes at the election in the year one thousand nine hundred and twenty-eight. Provided further that as between any two or more town councillors who may have been elected in any ward by an equal number of votes or where no contest has taken place the majority of the town council (including the town councillors so elected) shall determine the order in which the town councillors so elected shall retire from the town council. Provided further that nothing in this section contained shall affect the provisions of section 15 (Tenure of office of lord

provost treasurer and baillies) of the Aberdeen Corporation Act 1891. A.D. 1928.

10. Where the conditions or provisions imposed by the grantors or makers of any mortification endowment trust bequest or other grant require that one or more town councillors elected for any existing ward or wards of the city specified by name shall be chosen or appointed as trustee guardian governor or other manager to represent the Corporation the town councillors shall be chosen or appointed for the purpose from amongst the representatives of the new wards designated by the names so specified.

Appoint-
ment of
town
councillors
elected by
certain
wards as
Corpora-
tion repre-
sentatives
on trusts.

11. The division of the city into the new wards under the provisions of this Order shall have effect for parliamentary as well as municipal purposes but such divisions shall not affect the boundaries of the divisions into which the city is divided for the purpose of returning members to serve in Parliament.

Ward
boundaries
to have
effect for
parlia-
mentary
purposes.

12. The following sections of the Aberdeen City Acts 1862 to 1925 are hereby repealed:—

The Aberdeen Corporation Act 1891—

Section 14 (Number of council and magistrates);

Section 17 (New division of city into wards);

Section 18 (Representation of wards by present councillors);

Section 19 (Election of councillors for new wards);

Section 20 (Retirement and future election of councillors in new wards);

Second Schedule (Boundaries of wards into which the city is divided by this Act);

Third Schedule (Representation of wards by present councillors).

The Aberdeen Corporation Act 1899—

Section 39 (Representation of Torry Ward upon town council).

13.—(1) The new wards shall be the wards for the purpose of the election of parish councillors for the city parish of Aberdeen.

Election of
parish
councillors
for new
wards.

A.D. 1928.

(2) The local government electors of each new ward shall at the next statutory election of parish councillors after the commencement of this Order elect two parish councillors to serve on the said parish council and the number of parish councillors forming the said parish council shall be twenty-four.

Confirming
agreement
with parish
council
respecting
Oldmill
Hospitals.

14. The agreement as set forth in the Second Schedule to this Order and made between the Corporation of the first part and the parish council of the city parish of Aberdeen of the second part with respect to hospital accommodation and medical services at Oldmill is hereby confirmed and made binding on the parties thereto who shall have power to make such modifications thereof as may from time to time be approved by the Scottish Board of Health.

Confirming
agreement
with
London
and North
Eastern
Railway
Company.

15. The agreement as set forth in the Third Schedule to this Order made between the London and North Eastern Railway Company of the first part and the Corporation of the second part with respect to the rebuilding of Castle Terrace Bridge over that company's railway in the city is hereby confirmed and section 7 (For protection of Corporation of Aberdeen) of the Great North of Scotland Railway Act 1898 and section 35 (Agreement with Great North of Scotland Railway Company respecting Castle Terrace Bridge) of the Aberdeen Corporation Order 1915 shall be and are hereby repealed.

Provision
for registra-
tion of births
deaths and
marriages.

16. In connection with any future division or union of the several registration districts into which the city is divided for the purposes of the Births Deaths and Marriages (Scotland) Acts 1854 to 1910 it shall be lawful for the Sheriff if he thinks fit to direct that notwithstanding anything in the said Acts a registrar or assistant registrar may have his known place of business or office elsewhere than within the district for which he is registrar or assistant registrar.

Costs of
Order.

17. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of the public rates or municipal revenues of the city in such proportions as the Corporation may determine.

The SCHEDULES referred to in the foregoing Order. A.D. 1928.

THE FIRST SCHEDULE.

DESCRIPTION OF THE BOUNDARIES OF THE NEW WARDS
OF THE CITY.

WARD No. 1.—(Torry.)

Commencing at a point in the centre of the navigation channel of the harbour opposite the seaward extremity of the North Pier and of the South Breakwater proceeding thence westward along the centre of the navigation channel Tidal Harbour Victoria Dock and Upper Dock to Market Street thence south-eastward along Market Street to the centre of the channel of the River Dee thence southward along the said centre of the channel of the River Dee to the boundary of the city thence eastward northward and north-westward along the boundary of the city to the point of commencement.

WARD No. 2.—(St. Clement's.)

Commencing at a point in the centre of the navigation channel of the harbour opposite the seaward extremity of the North Pier and of the South Breakwater proceeding thence north-westward to the seaward extremity of the North Pier thence south-westward along the north side of that pier to the seashore thence northward along the seashore to a point opposite the road skirting the Broad Hill and joining Constitution Street and the Beach Esplanade thence westward along the said road to Constitution Street thence south-westward along Constitution Street to the London and North Eastern Railway thence north-westward along the north-east side of the said railway to a point opposite Lemon Place thence south-westward along Lemon Place to Duff Street thence westward along Duff Street to Park Street thence southward along Park Street to Jasmine Terrace thence westward along Jasmine Terrace to King Street thence southward along King Street to Castle Street thence south-westward along Castle Street and Union Street to Market Street thence south-eastward along Market Street to a point opposite the centre of Upper Dock thence along the centre of Upper Dock Victoria Dock Tidal Harbour and navigation channel to the point of commencement.

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WARD NO. 3.—(GREYFRIARS.)

Commencing in King Street opposite Castle Street proceeding thence northward along King Street to Merkland Road thence westward along Merkland Road to Spital thence southward along Spital to Froghall Terrace thence westward along Froghall Terrace to Elmbank Terrace thence north-westward along Elmbank Terrace to Bedford Road thence south-westward across the bridge over the London and North Eastern Railway goods line to Powis Terrace thence south-eastward along Powis Terrace George Street and St. Nicholas Street to Union Street thence north-eastward along Union Street and Castle Street to the point of commencement.

WARD NO. 4.—(ST. MACHAR.)

Commencing on the seashore at a point opposite the road skirting the Broad Hill and joining Constitution Street and the Beach Esplanade proceeding thence northward along the seashore to the centre of the channel of the River Don thence westward along the centre of the channel of the River Don to a point opposite the north end of Don Street (Woodside) thence southward along Don Street to the north-east side of the London and North Eastern Railway thence south-eastward along the east side of the London and North Eastern Railway to Bedford Road thence south-westward along Bedford Road to Elmbank Terrace thence south-eastward along Elmbank Terrace and eastward along Froghall Terrace to Spital thence northward along Spital to Merkland Road thence eastward along Merkland Road to King Street thence southward along King Street to Jasmine Terrace thence eastward along Jasmine Terrace northward along Park Street eastward along Duff Street and Lemon Place to the London and North Eastern Railway thence along the north-east side of the London and North Eastern Railway to Constitution Street thence north-eastward along Constitution Street thence along the road skirting the south side of Broad Hill to the Beach Esplanade to the point of commencement.

WARD NO. 5.—(WOODSIDE.)

Commencing in Powis Terrace opposite Bedford Road proceeding thence north-eastward along Bedford Road to the east side of the London and North Eastern Railway thence north-westward along the east side of the London and North Eastern Railway to Don Street (Woodside) thence northward along Don Street to the centre of the channel of the River Don thence westward along the centre of the said channel to the Scatterburn thence southward along the boundary of the city to Mid Stocket Road thence eastward along Mid Stocket Road to Long Walk Road thence northward along Long Walk Road to Westburn Road

thence eastward along Westburn Road and the parliamentary boundary between the north and south divisions of the city and northward and north-eastward along the said parliamentary boundary to Clifton Road thence south-eastward along Clifton Road and Powis Terrace to the point of commencement. A.D. 1928
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WARD NO. 6.—(ST. NICHOLAS.)

Commencing in Union Street opposite St. Nicholas Street proceeding thence south-westward along Union Street to Union Bridge thence north-westward along the east side of the London and North Eastern Railway to Woolmanhill thence north-westward along Woolmanhill Gilcomston Steps Skene Square and Rosemount Terrace to Westburn Road thence westward along Westburn Road to Cornhill Road thence northward along Cornhill Road to the parliamentary boundary between the north and south divisions of the city thence eastward northward and north-eastward along the said boundary to Clifton Road thence south eastward along Clifton Road Powis Terrace George Street and St. Nicholas Street to the point of commencement.

WARD NO. 7.—(ROSEMOUNT.)

Commencing in Baker Street opposite Gilcomston Steps proceeding thence south-westward along Baker Street and Leadside Road to Short Loanings thence north-westward along Short Loanings to Rosemount Place thence westward along Rosemount Place Beechgrove Terrace and King's Gate to Queen's Road thence north-westward along Queen's Road to the boundary of the city thence northward and eastward along the boundary of the city to Mid Stocket Road thence eastward along Mid Stocket Road to Long Walk Road thence northward along Long Walk Road to Westburn Road thence eastward along Westburn Road and the parliamentary boundary between the north and south divisions of the city to Cornhill Road thence southward along Cornhill Road to Westburn Road thence eastward along Westburn Road and south-eastward along Rosemount Terrace Skene Square and Gilcomston Steps to the point of commencement.

WARD NO. 8.—(RUBISLAW.)

Commencing in Leadside Road opposite Short Loanings proceeding thence south-westward along Leadside Road and Whitehall Place to Prince Arthur Street thence southward along Prince Arthur Street to Albyn Place thence westward along Albyn Place to Queen's Cross opposite St. Swithin Street thence southward along St. Swithin Street to Union Grove thence south-westward along Union Grove and Cromwell Road and the proposed extension of Cromwell Road to Seafield Road thence south-westward along Seafield Road to the road connecting

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A.D. 1928. Viewfield Road and Countesswells Road thence southward along the said connecting road to Countesswells Road thence south-westward along Countesswells Road to the boundary of the city thence westward and north-westward along the boundary of the city to Queen's Road thence south-eastward along Queen's Road to King's Gate thence north-eastward along King's Gate Beechgrove Terrace and Rosemount Place to Short Loanings thence south-eastward along Short Loanings to the point of commencement.

WARD No. 9.—(GILCOMSTON.)

Commencing at the east side of Union Bridge proceeding thence south-westward along Union Bridge and Union Street thence westward along Alford Place and Albyn Place to Prince Arthur Street thence northward along Prince Arthur Street to Whitehall Place thence north-eastward along Whitehall Place Leaside Road and Baker Street to Gilcomston Steps thence south-eastward along Gilcomston Steps and Woolmanhill to the east side of the London and North Eastern Railway thence south-eastward along the said Railway to the point of commencement.

WARD No. 10.—(HOLBURN.)

Commencing at Union Street opposite Bridge Street proceeding thence south-westward along Union Street thence westward along Alford Place and Albyn Place to Queen's Cross thence southward along St. Swithin Street to Union Grove thence north-eastward along Union Grove to Claremont Place thence south-eastward along Claremont Place and Chattan Place to Great Western Road thence north-eastward along Great Western Road to Holburn Street thence eastward along Willowbank Road Springbank Terrace and Wellington Place to South College Street thence northward along South College Street College Street and Bridge Street to the point of commencement.

WARD No. 11.—(RUTHRIESTON.)

Commencing in Holburn Street opposite Great Western Road proceeding thence southward along Holburn Street and Bridge of Dee to the boundary of the city thence southward westward and northward along the boundary of the city to Countesswells Road thence north-eastward along Countesswells Road to the road connecting Countesswells Road and Viewfield Road thence northward along the said connecting road to Seafeld Road thence north-eastward along Seafeld Road to the proposed extension of Cromwell Road thence north-eastward along the proposed extension of Cromwell Road thence north-eastward along Cromwell Road and Union Grove to Claremont

Place thence south-eastward along Claremont Place and Chattan Place to Great Western Road thence north-eastward along Great Western Road to the point of commencement. A.D. 1928.
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WARD NO. 12.—(FERRYHILL.)

Commencing in Union Street opposite St. Nicholas Street proceeding thence south-eastward along Market Street to the centre of the channel of the River Dee thence westward and southward along the centre of the said channel to the Bridge of Dee in Holburn Street thence north-westward and northward along the said Bridge of Dee and Holburn Street to Willowbank Road thence eastward along Willowbank Road Springbank Terrace and Wellington Place to South College Street thence northward along South College Street College Street and Bridge Street to Union Street thence north-eastward along Union Street to the point of commencement.

THE SECOND SCHEDULE.

AGREEMENT BETWEEN THE CORPORATION AND THE PARISH
COUNCIL OF THE CITY PARISH OF ABERDEEN WITH
RESPECT TO POOR LAW HOSPITALS AT OLDMILL.

Stamp.

Ten
shillings.

It is contracted and agreed between the lord provost magistrates and town council of the city and royal burgh of Aberdeen acting as the local authority under the Public Health (Scotland) Act 1897 (hereinafter referred to as "the Town Council") of the first part and the parish council of the city parish of Aberdeen (hereinafter referred to as "the Parish Council") of the second part as follows (namely) :—

Whereas the parties have made an arrangement under which the Town Council are to take over from the Parish Council the whole of the hospital accommodation (general and special hospitals) at Oldmill and become responsible for all medical services at the hospitals there :

And whereas it is proper that the terms of the arrangement should be embodied in a formal agreement :

Therefore the parties hereto agreed and do hereby agree as follows (namely) :—

First The Town Council shall undertake the entire institutional care of the sick poor of the city and provide such medical services as are required by the Parish Council the latter authority to pay for such services at the poor law rate i.e. at

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A.D. 1928. the average cost for the Parish Council's financial year 1925-26
viz. :—

Adults Twenty-five shillings and one penny per patient
per week.

Mother and Infant Twenty-eight shillings and sevenpence
per week.

Children under Fourteen Twelve shillings and threepence
per week.

The Town Council shall undertake the institutional care of all maternity and sick infant poor as at present provided by the Parish Council the latter authority to pay for such services at the poor law rate (i.e. on the basis of the cost for the financial year 1925-26) in all cases sent in by the Parish Council or for which they accept responsibility.

Second The Parish Council shall have the unrestricted right to send patients to Oldmill Hospitals in order to be in a position to fulfil their whole statutory or contractual obligations in that regard.

Third The Parish Council's existing medical and nursing staffs at Oldmill Hospitals shall be taken over by the Town Council who shall at or prior to such transference designate within the meaning and for the purposes of the Local Government and other Officers' Superannuation Act 1922 the several posts occupied by such whole-time members of said staffs. The Town Council agree that in the case of any officer of the Parish Council transferred whose services could not have been dispensed with by the Parish Council without the consent of the Scottish Board of Health the services of such officer after transfer will not be dispensed with by the Town Council unless with the consent of the Scottish Board of Health.

Fourth The Parish Council shall hand over to the Town Council (1) the two hospitals (general and special) at Oldmill (2) the present nurses' home which occupies a site on the south-west side of the administration block and (3) that portion of the west wing of the present administration block consisting of six wards on the ground and first floors with two lavatories and staircase and adjacent ground all according to the plan numbered one annexed and subscribed as relative hereto.

Fifth The Town Council shall at their own expense carry out the necessary alterations (which are of a minor nature) on the said portion of the administration block according to the plans (numbered respectively two and three) annexed and subscribed as relative hereto submitted by the superintendent of town's properties and approved of by the public health sub-committee of the Town Council and the sub-committee of the Parish Council which shows the part of the building referred to so adapted as to provide accommodation for fifty-six nurses and

ten maids with suitable dining-room pantry lavatory and bath-room accommodation. A.D. 1928

Sixth The Town Council shall take over free of charge to them all buildings and the existing equipment above referred to and shall maintain such buildings and equipment in a good and satisfactory state of repair and be responsible for all adaptations and alterations thereon including such alterations in the electrical installation as may be necessary should the Parish Council determine to replace their present independent supply by a supply from the Town Council and also such adjustment in the present telephone system at the hospitals as may be required to suit the arrangements of both authorities The Parish Council shall pay all sinking fund and interest charges effeiring to the buildings transferred The proportion of rates and assessments payable by each party shall be mutually adjusted.

Seventh The Town Council should they consider it desirable may erect at their own expense suitable balconies at the special hospital and such erections alterations or additions to be subject to the consent of the Parish Council and the approval of the Scottish Board of Health.

Eighth Before proceeding with any further erections alterations or adaptations on or about any of the subjects referred to in article four hereof the Town Council shall first obtain the approval of the Parish Council which they shall not unreasonably withhold and of the Scottish Board of Health.

Ninth The Parish Council shall provide free of cost the hospitals at Oldmill under the charge of the Town Council with inmate labour so far as available.

Tenth The Parish Council shall provide the Town Council with the necessary laundry services on terms to be adjusted.

Eleventh The present kitchen shall be so partitioned and adapted including the provision of adequate appliances at the expense of the Town Council and to the satisfaction of the Parish Council as to permit of the Parish Council and Town Council having separate kitchens for cooking purposes.

Twelfth A certified inventory of the furnishings equipment &c. at the hospitals taken over by the Town Council shall be prepared jointly.

Thirteenth The Parish Council shall so far as not inconsistent with their own requirements provide accommodation which shall be under the charge of the Town Council for the stores of the hospitals it being understood and agreed that any structural or other alterations desired by the Town Council upon the buildings provided by the Parish Council for the purposes specified in this article shall be executed only so far as approved by the Parish Council and at the sole cost of the Town Council.

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Fourteenth The Parish Council shall provide the hospitals under the charge of the Town Council with the necessary services viz. heating lighting sewerage hot and cold water subject to the adjustment between the parties hereto of the amount to be paid for these services.

Fifteenth This agreement shall subsist and be of full force and effect for the period of five years from and after the fifteenth day of May nineteen hundred and twenty-seven which is hereby declared to be the date of the commencement thereof provided that after said period of five years it shall be in the power of either party hereto with the consent of the Scottish Board of Health to terminate this agreement on giving six months' previous notice in writing to the other party of their intention so to do such termination however to take effect only at the fifteenth day of May or the eleventh day of November in any year.

Sixteenth On the termination of this agreement the Town Council undertake to redeliver to the Parish Council the whole subjects heritable and moveable taken over by them under and in terms of this agreement in good order and condition in all respects fair wear and tear alone excepted and shall where necessary restore and make good any defects deficiencies or deterioration in said whole subjects or pay to the Parish Council the expenses involved in the restoration and repair of such defects deficiencies or deterioration or the loss thereby ensuing as the same may be adjusted between the parties The Parish Council undertake on such termination to make a reasonable allowance to the Town Council for all improvements made by the Town Council upon the said subjects in so far as said improvements are of value to the Parish Council in carrying out their statutory obligations.

Seventeenth In the event of the Town Council receiving patients at Oldmill from other parishes or districts otherwise than through the inspector of poor of the city parish of Aberdeen the Town Council shall at the expiry of the treatment of said patients or upon their discharge cause said patients to be returned free of expense to the Parish Council to the parishes or districts from which they were received.

Eighteenth All matters of detail arising from the transfer of the buildings and services shall be adjusted between the public health sub-committee of the Town Council and the sub-committee of the Parish Council.

Nineteenth In the event of any dispute arising between the parties hereto either as to the adjustment of the cost of services or regarding any other matter arising out of this agreement which the parties are unable to settle the dispute shall be referred to the Scottish Board of Health whose decision shall be accepted as final by both parties.

Twentieth The parties hereto consent to the registration A.D. 1928.
hereof for preservation and execution.

Twenty-first This agreement is made subject to confirmation by Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 and subject to such alterations as may be made therein by the Secretary of State or Parliament during the progress of the Order.

In Witness Whereof these presents printed upon this and the two preceding pages are along with the foresaid plans executed by the parties hereto in duplicate as follows videlicet they are in terms of the Aberdeen Municipality Extension Act 1871 subscribed on behalf of the Town Council by Andrew Lewis the lord provost Walter Graham the senior baillie and George Sutherland Fraser the town clerk all of the said city and royal burgh of Aberdeen and sealed with the common seal of the Town Council all at Aberdeen on the twenty-first day of February nineteen hundred and twenty-seven before these witnesses George Allan Stephen assistant in the town clerk's office Aberdeen and Charles Thompson town sergeant Aberdeen and are subscribed by John Duncan MacDiarmid John Jackson Stewart Thomas Mitchell and George Wight Reid being respectively the chairman the convener of the Oldmill Hospital Committee a member of the Oldmill Hospital Committee and the clerk and inspector all of the Parish Council and duly authorised as such to sign these presents for and on behalf of the Parish Council and are also sealed with the common seal of the Parish Council all at Aberdeen on the twenty-eighth day of the said month and year last above mentioned before these witnesses Adam Smith deputy inspector of poor Aberdeen and John Anderson governor of Oldmill Hospitals.

ANDREW LEWIS

Lord Provost.

GEO. A. STEPHEN

Witness.

WALTER GRAHAM

Senior Baillie.

CHARLES THOMPSON

Witness.

G. S. FRASER

Town Clerk.

J. DUNCAN MACDIARMID

Chairman.

ADAM SMITH

Witness.

J. J. STEWART

Convener.

JOHN ANDERSON

Witness.

THOMAS MITCHELL.

GEORGE W. REID

Clerk and Inspector.

A.D. 1928.

THE THIRD SCHEDULE.

Stamp.



AGREEMENT BETWEEN THE LONDON AND NORTH EASTERN
RAILWAY COMPANY AND THE CORPORATION.

It is contracted and agreed between the London and North Eastern Railway Company incorporated by and in virtue of the "Railways Act 1921" (hereinafter called "the Company") of the first part and the Lord provost magistrates and Town council of the city and royal burgh of Aberdeen (hereinafter called "the Corporation") of the second part as follows (namely):—

Whereas the bridge belonging to the Company carrying Castle Terrace over the Waterloo Branch of their railway at Waterloo Goods Station in the city of Aberdeen is requiring renewal and the Corporation desire the bridge to be widened and strengthened so as to be capable of carrying the standard loading for highway bridges as approved by the Ministry of Transport in January nineteen hundred and twenty-two and have indicated their willingness with the assistance of a grant from the Ministry of Transport to pay an agreed upon proportion of the cost of construction of the new bridge and relative works:

And whereas it has been agreed that the Company should carry out the construction of such new widened and strengthened bridge with the immediate approaches and all other necessary works connected therewith including the construction of a fifteen feet wide roadway from Cotton Street to the north end of Bannermill Street in said city and also the provision of a temporary bridge over the railway for foot passenger traffic during the construction of the new widened and strengthened bridge all as hereinafter mentioned:

Therefore the parties hereto have agreed and do hereby agree as follows (namely):—

First The new widened and strengthened bridge which shall have a width of forty feet between the parapets together with the immediate approaches thereto and all other necessary works connected therewith including the construction of a fifteen feet wide roadway from Cotton Street to the north end of Bannermill Street shall be constructed by the Company under the sole direction and control of their engineer on the lines shewn on the plan annexed and signed by the parties with reference hereto it being understood that the Corporation shall obtain the consent of the proprietors of St. Clement's U.F. Church to the raising by the Company of the levels of Fish Street and Castle Terrace.

Second Before commencing the construction of the new widened and strengthened bridge and approaches thereto the Company shall submit to the Corporation detailed plans sections and specifications for the reasonable approval of the Corporation and the Ministry of Transport. A.D. 1928.
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Third In forming the carriageway and footways of the new widened and strengthened bridge the Company shall pave them with mastic rock asphalt and provide suitable kerbing and they shall pave the carriageways of the approaches thereto with granite setts and the footways with adamant paving slabs with suitable kerbing all to the satisfaction of the Corporation's burgh surveyor.

Fourth The construction of the new widened and strengthened bridge together with the whole of the street and other works therewith connected shall be proceeded with by the Company continuously after commencement and shall be completed as soon as practicable.

Fifth The Company shall make suitable provision in the construction of the new widened and strengthened bridge so as to enable the Corporation or His Majesty's Postmaster-General as the case may be at their own cost to lay (a) along the outer sides but limited to an extension of five feet if entirely on one side or to three feet on each side if on both sides and/or (b) under the footways of the bridge such mains or pipes as may be necessary for the purposes of conveying water gas electricity and telegraph and telephone mains alternatively the Company shall give facilities to the Corporation for laying the said mains or pipes under the railway.

Sixth If the Corporation require to place or lay any such mains or pipes as are mentioned in the immediately preceding article the Corporation shall lay the same in such manner and at such times as the engineer of the Company may direct and the Corporation in laying the same or any work connected therewith shall not interrupt or interfere with the working of any traffic on the railway of the Company and the Company shall afford to the Corporation all reasonable and proper facilities for enabling the Corporation to place lay and maintain the said mains or pipes it being understood that His Majesty's Postmaster-General will require to make his own arrangements with the Company for the laying or withdrawing of any mains or pipes belonging to him.

Seventh The Corporation shall remove at their own cost any water gas and electric mains or pipes in any of the streets or parts of streets to be stopped up and whether or not the solum of such streets or parts of streets are or are not appropriated by the Company.

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A.D. 1928.

Eighth The Corporation shall themselves bear all costs and expenses involved in altering any water gas or electric mains or pipes drains and other services which may be necessary in connection with the construction of the new widened and strengthened bridge.

Ninth After the construction of the new widened and strengthened bridge which shall belong to the Company the Company shall maintain the superstructure of the bridge and the Corporation shall take over and at their own expense maintain in all time coming the carriageway and footways of the bridge and the approaches thereto including the fifteen feet wide roadway from Cotton Street to the north end of Bannermill Street.

Tenth The parties hereto shall jointly accept all responsibility arising in any way out of and during the construction of the new widened and strengthened bridge for claims from whatever cause arising which may be made against them or either of them in respect of injury to passengers or goods or other traffic on the railway or by third parties in respect of accident or injury to them or their property arising out of and during the construction of said new widened and strengthened bridge the risk to be covered by insurance to be provided for in the contract for the works and the Corporation shall assume all liability to third parties who may sustain loss injury or damage arising out of the failure properly to perform the obligations incumbent upon them mentioned in the preceding article.

Eleventh The Company shall utilise any ground belonging to them required in connection with the construction of the east approach to the bridge including (a) the triangular portion of ground extending to seventy-two square yards or thereby forming part of their property No. 1 Bannermill Street (b) the portion of the yard on the east side of the railway between the existing east approach to the bridge and the lane leading to the south end of Bannermill Street extending to four hundred square yards or thereby and (c) the site of the proposed fifteen feet wide roadway from Cotton Street to the north end of Bannermill Street extending to two hundred and seventeen square yards or thereby all as said three portions of ground are hatched brown on the said plan annexed and signed as relative hereto and in exchange therefor the Company shall be entitled to appropriate the site and soil of the portions of the east approach to the existing bridge so far as not occupied by the new approaches and extending to four hundred and sixty-two square yards or thereby and which shall become the property of the company.

Twelfth Should the Company at any future time require to renew the bridge or decide to add to their lines of railway or

to alter or deviate their said railways in any way they shall subject to the consent of the Corporation in so far as they have an interest as Road authority which consent shall not be unreasonably withheld be entitled to effect such renewal or to make such alterations or additions upon the new widened and strengthened bridge and the approaches thereto as they may deem necessary or desirable.

A.D. 1928.

Thirteenth The Corporation shall during the construction of the works afford to the Company every facility to enable them to carry out such works as expeditiously as possible and so as to entail the minimum interruption and interference with the conduct of traffic on the railway and roadways In particular the Corporation shall make such arrangements for the regulation of traffic on or along the adjoining streets as may in the opinion of the Company be necessary from time to time and shall also arrange for the closing of any or all of the adjoining streets against traffic of all kinds during such periods as may in the opinion of the Company be necessary to enable the said works to be carried out During the construction of the new widened and strengthened bridge and relative works the Company shall provide a temporary bridge five feet wide over the railway for foot passenger traffic and shall also afford the Corporation suitable provision in the construction of the temporary bridge or otherwise to lay such mains as may be necessary for the purpose of continuing their water gas and electricity services hereinbefore referred to the expense of the temporary bridge to form part of the cost of the bridge referred to in article fourteenth hereof.

Fourteenth The Corporation shall pay to the Company a sum equivalent to thirteen-twentieths of the actual cost of construction of the new widened and strengthened bridge and all relative works including in such cost (a) any compensation which the Company may require to pay to their tenants or which the Corporation may require to pay to frontagers whose premises are or may be affected and (b) the expenses incurred by the Company in preparing the necessary drawings schedules and specification for said widening and strengthening in supervising the work and protecting the Company's railway and property as such cost shall from time to time be certified by the Company's engineer whose certificates shall be accepted as final by the Corporation Towards payment of their share of such cost of construction the Corporation shall at intervals of three months or at such other intervals as may be mutually agreed upon pay to the Company instalments equivalent to thirteen-twentieth parts of the sums certified by the Company's engineer as afore-said as being the actual cost of construction up to the dates of said certificates.

[Ch. xxi.] *Aberdeen Corporation* [18 & 19 GEO. 5.]
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A.D. 1928.
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Fifteenth It is hereby agreed by the parties that the Corporation shall be entitled to appropriate and apply the sum of one thousand pounds which was paid by the Great North of Scotland Railway Company to the Corporation with any interest accrued thereon (said sum together with the interest thereon amounting at the date of these presents to the sum of two thousand and five hundred pounds) referred to in section 7 (4) of the Great North of Scotland Railway Act 1898 and section 35 (9) of the Aberdeen Corporation Order 1915 towards the payment of the share of the actual cost of construction of the new widened and strengthened bridge and relative works payable by the Corporation as provided for in the immediately preceding article.

Sixteenth The parties hereto bind and oblige themselves and their successors and representatives to fulfil this agreement to each other in the whole articles and clauses thereof under the penalty of five hundred pounds sterling in name of liquidated damages to be paid by the party failing to the party observing or willing to observe the same over and above performance.

Seventeenth If any disputes or differences shall arise between the parties during the progress of the works to be carried out in pursuance of this agreement or after their completion or as to the true intent or meaning of the plans sections and specifications referred to in article second hereof or of these presents then all such disputes or differences are hereby submitted and referred to the decision final sentence and decree arbitral of the sheriff of the county of Aberdeen as sole arbiter.

Eighteenth This agreement shall be scheduled to the next Provisional Order to be promoted either by the Corporation or the Company and shall supersede and come in place of (a) the agreement between the parties of date sixteenth and twenty-fourth March nineteen hundred and twenty-six and (b) the provisions of section 7 of the Great North of Scotland Railway Act 1898 and section 35 of the Aberdeen Corporation Order 1915.

Nineteenth The parties hereto consent to the registration of these presents in the books of council and session or others competent for preservation and execution.

Twentieth This agreement is made subject to confirmation by Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 and subject to such alterations as may be made therein by the Secretary of State or Parliament during the progress of the Order.

In witness whereof these presents printed upon this and the three preceding pages are along with the relative plan executed by the parties hereto in duplicate as follows videlicet they are

[18 & 19 GEO. 5.] *Aberdeen Corporation* [Ch. xxi.]
Order Confirmation Act, 1928.

in terms of the Aberdeen Municipality Extension Act 1871 subscribed on behalf of the Corporation by Andrew Lewis the lord provost James Reid Rust the city treasurer and George Sutherland Fraser the town clerk all of the said city and royal burgh of Aberdeen and sealed with the common seal of the Corporation all at Aberdeen upon the twenty-first day of April one thousand nine hundred and twenty-seven in presence of these witnesses George Allan Stephen assistant in the town clerk's office Aberdeen and John Skene town sergeant Aberdeen and they are sealed with the common seal of the Company at London on the twenty-sixth day of said month and year last mentioned and attested by Percy John Dowsett their assistant secretary.

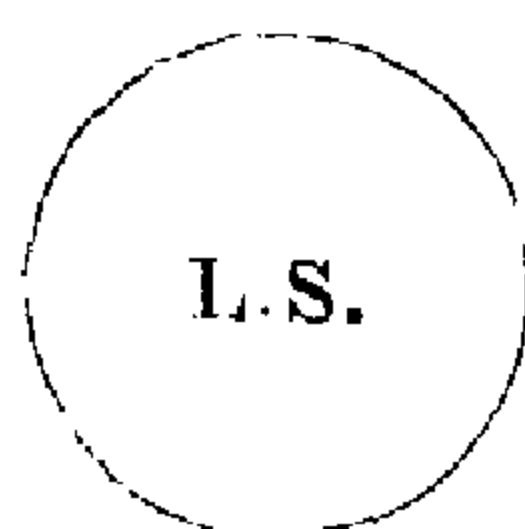
A.D. 1928.
—

GEO. A. STEPHEN

Witness.

JOHN SKENE

Witness.



ANDREW LEWIS

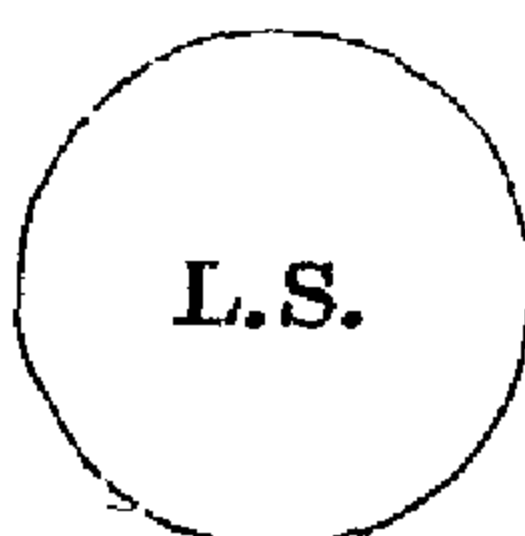
Lord Provost.

JAMES R. RUST

City Treasurer.

G. S. FRASER

Town Clerk.



P. J. DOWSETT

Assistant Secretary.

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